

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR FEBRUARY 10, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

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1A. **MSP20-00225 ESTATE OF DAVID MACLEAN**
9:00 AM HEARING IN RE: PETITION FOR REMOVAL OF EXECUTOR OF DECEDENT'S WILL FILED BY ALEXANDER MACLEAN AND ZACHARY MACLEAN ON 05/05/2025

Need:

1. Appearances
2. Verified declaration by petitioner to state relationships of all persons entitled to receive notice. LR 7.112
3. Proposed Order

Notes:

- a. Letters Testamentary issued to Janette Ocampo 1-31-2023.
- b. Objections in Opposition filed by Janette Ocampo 6-20-2025.
- c. Supplement to Petition filed 8-14-2025.
- d. Order on Ex Parte Application for Approval of Settlement Agreement filed 12/17/2025

1B. **MSP20-00225 ESTATE OF DAVID MACLEAN**
9:00 AM HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED WITH IAEA FILED BY ALEXANDER MACLEAN AND ZACHARY MACLEAN ON 05/05/2025

Need:

1. Appearances
2. Verified declaration by petitioner to include ages and relationships of persons in Attachment 8. PrC § 8002
3. Order for Probate Form DE-140

Notes:

- a. Will dated 1-10-2007 was admitted to Probate per Order filed 1-13-2023.
- b. Response of Janette Ocampo filed 6-20-2025.
- c. If granted, bond will be fixed at \$455,000.00.

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1C. **MSP20-00225 ESTATE OF DAVID MACLEAN**
9:00 AM HEARING IN RE: PETITION AUTHORIZING SALE OF REAL PROPERTY OR FOR ORDER APPOINTING APPRAISER; FOR INSTRUCTIONS TO TRUSTEE FILED ON 4/15/2024 BY JANETTE OCAMPO

Need:

1. Appearances to report status
2. Proposed Order

Notes:

- a. Objection filed by Alexander MacLean and Zachary MacLean 8-27-2024.

1D. **MSP20-00225 ESTATE OF DAVID MACLEAN**
9:00 AM HEARING IN RE: FIRST & FINAL REPORT, WAIVER OF ACCOUNT & REPORT, PETITION FOR SETTLEMENT, FEES; FOR REIMBURSEMENT & FINAL DISTRIBUTION FILED ON 07/03/23 BY JANETTE OCAMPO

Need:

1. Appearances to report status
2. Verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice so court can confirm mailing. LR 7.112
3. Creditor Claims fully listed in Petition including date filed. PrC § 10900; CRC § 7.403
4. Compliance with CRC 7.250 regarding any acts taken under IAEA w/notice of proposed action. (Specifics needed or statement that no action was taken)
5. Waivers of Accounting by all beneficiaries or Accounting that complies with PrC § 1060 *et seq.*
6. Verified declaration of petitioner showing compliance with Probate Code § 11005, unless account is waived
7. Verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705.
8. Verified declaration by petitioner to specify how attorney's fees will be paid. There is no cash on hand.

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5. 9:00 AM	MSP21-00975 IN THE MATTER OF: THE AVA LAIN FIRST PARTY SPECIAL HEARING IN RE: 2ND ACCOUNT & REPORT OF TRUSTEES; PETITION TO SETTLE ACCOUNT, TO APPROVE RESIGNATION OF TRUSTEE, TO WAIVE BOND; TO AUTHORIZE REIMBURSEMENT, FIX & ALLOW ATTY FEES& COST FILED ON 9-18-25 BY JOSEPH LAIN & LEANN PIOMBO
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Need appearances

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6. 9:00 AM	P23-00902 MATTER OF: THE DAVIS FAMILY TRUST DATED APRIL 18, 1988 HEARING IN RE: PETITION TO COMPEL DISTRIBUTION OF TRUST ASSETS, REMOVAL OF DEBORAH DAVIS AS SUCCESSOR TRUSTEE, APPOINTMENT OF TEMP TRUSTEE FILED ON 05/16/23 BY GLEN DAVIS Need: 1. Appearances to report status of settlement 2. Proposed Order
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7. 9:00 AM	P23-01227 HEARING IN RE: MOTION FOR ENFORCEMENT OF STIPULATED JUDGMENT FILED ON 9-17-25 BY KENNETH BRILLIANT	MATTER OF: BRILLIANT REVOCABLE TRUST DATED OCTOBER 6, 2014
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Drop. Acknowledgment of Satisfaction of Judgment filed 01/13/26

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8. **P23-01473** **ESTATE OF: HSUEH-CHUN LIU**
9:00 AM HEARING IN RE: FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR FILED BY RICHELLE
MAE KOGA ON 09/22/2025

Need:

1. Declaration to state when action under IAEA (with Notice of Proposed Action) was taken, when and to whom notice was given, whether notice was waived by anyone and whether any objections were received. CRC § 7.250
2. Verified declaration by petitioner to clarify the date that Letters were issued. Petition says it was 07/11/24, which is not supported by case history.
3. Declaration to state need for reserve in excess of \$2,000.00.

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9. 9:00 AM	P23-01788 ESTATE OF: WES BOOKOUT HEARING IN RE: PETITION FOR RETURN OF PROPERTY AND ATTORNEY'S FEES FILED BY WESLEY CANNON ON 09/17/2025 Need: 1. Appearances 2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
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10. 9:00 AM	P23-02072 HEARING IN RE: REPORT OF ADMINISTRATOR FILED BY ALEYA D RATH ON 09/18/2025	ESTATE OF: ROBIN RATH
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Petition Approved
Proposed Order Submitted
No Appearance Required

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11.	P24-00908	IN RE: THE ALBERT D. SEENO, JR. AND SANDRA L. SEENO PCI TRUST FOR DAVID T. SEENO
9:00 AM	HEARING IN RE: APPLICATION OF KRISTEN T GALLAGHER TO APPEAR AS COUNSEL PRO HAC VICE FOR INTERESTED PARTIES ALBERT D SEENO, JR AND SANDRA L SEENO ON 09/18/2025	
	Need appearances	

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12. 9:00 AM	P24-00970 ESTATE OF: GEORGE SUGIMURA HEARING IN RE: FIRST AND FINAL REPORT OF EXECUTOR ON WAIVER OF ACCOUNT FILED BY SHERYL BECHET ON 09/17/2025
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Need:

1. Verified declaration by petitioner to cite authority to distribute estate directly to Cheryl Bechet individually. The Will distributes the real property and residue of the estate to the Trust.
2. Proposed Order.

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13A. **P24-01202** **ESTATE OF: MARTHA MARTIN**
9:00 AM HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA
FILED BY DAMIAN DE LA ROSA ON 7/17/24 / AFTER MEDIATION

Need appearances to report status, including mediation.

Notes:

- a. Will Contest and Grounds of Objection filed by Rodrigo De La Rosa 11/15/2024.
- b. Objection filed by Michael G. Martin 12/19/2024.
- c. Response to Will Contest filed by Damian De La Rosa 01/03/2025.
- d. Response to Objection of Michael Martin filed by Damian De La Rosa 01/03/2025.

13B. **P24-01202** **ESTATE OF: MARTHA MARTIN**
9:00 AM HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA
FILED BY DAMIAN DE LA ROSA ON 7/17/24/ POST MEDIATION. / POST MEDIATION MOTION TO
STRIKE UNTIMELY OBJECTION AND CROSS PETITION FILED ON 01/13/25 BY DAMIAN DE LA ROSA

Need appearances

Notes:

- a. The court will not hear arguments on this Motion, which will be continued to a future date at this hearing. Code of Civil Procedure section 435.5(a) requires the moving party to meet and confer with the opposing party before filing a Motion to Strike “for the purpose of determine if an agreement can be reached that resolves the objections to be raised in the motion.” The moving party is required to file a Declaration that demonstrates satisfaction of this rule. Code of Civ. Proc. § 435.5(a)(3). No Declaration that satisfied Section 435.5(a)(3) is included in this Motion. The moving party is hereby ordered to meet and confer with the opposing party in compliance with Code of Civil Procedure section 435.5(a) and file a declaration demonstrating compliance. The meet and confer shall take place not later than April 11, 2025, with the Declaration to be filed not later than April 18, 2025.
- b. Objection filed 03/12/25 by Michael G. Martin

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13C. 9:00 AM	P24-01202 ESTATE OF: MARTHA MARTIN HEARING IN RE: PETITION FOR PROBATE OF LETTERS OF ADMINISTRATION W/IAEA FILED ON 11/15/2024 BY RODRIGO DE LA ROSA Need: 1. Appearances to report status, including mediation
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16. 9:00 AM	P25-00834 MATTER OF: STOTKA FAMILY TRUST, DATED FEBRUARY 9, 2021 HEARING IN RE: PETITION FOR ORDER CONFIRMING TRUST ASSETS & RATIFYING STOCK AGREEMENT, PROMISSORY NOTE & CONTRACT DEED FILED ON 5-8-25 BY ROBIN CHEREZIAN-LONGCHAMPS Need: 1. Proposed Order Notes: a. Petition for Approval of First, Second, and Third Account and Report filed 12/02/25 by Robin Cherezian-Longchamps, set 04/28/26
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17. 9:00 AM	P25-01649 MATTER OF: KAREN ST. ONGE DALLOW LIVING TRUST HEARING IN RE: AMENDED PETITION FOR AN ORDER CONFIRMING ASSETS FROM A JOINT ACCOUNT ARE THE SOLE SEPARATE PROPERTY OF KAREN ST ONGE DALLOW; CONFIRMING THOSE ASSETS ARE ASSETS OF THE KAREN ST. ONGE DALLOW LIVING TRUST ; ORDER DIRECTING THOSE ASSETS BE DEPOSITED INTO AN ACCOUNT IN THE NAME OF KAREN ST. ONGE DALLOW LIVING TRUST FILED FILED ON 9-17-25 BY KAREN ST. ONGE-DALLOW Need: 1. Appearances 2. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203 3. Proposed Order
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18. 9:00 AM	P25-01680 IN RE: BUTTE HOME HEALTH AND HOSPICE HEARING IN RE: PETITION FOR ORDER INVALIDATING THE FIRST AMENDMENT OF THE DECLARATION OF TRUST BY LILLIAN SILVIA NARDI; REMOVAL OF RANDOLPH HUDSON AS TRUSTEE FILED ON 09/19/25 BY BUTTE HOME HEALTH AND HOSPICE Need: 1. Appearances 2. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203 3. Proposed Order Notes: a. It appears this Petition should have been filed into existing related case P23-02190. The Court will decide whether to consolidate the two case numbers.
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**19. P24-01994 MATTER OF: DAVID COOPER, TRUSTEE OF THE LAWRENCE AND TAKA BRENNAN
FAMILY TRUST DATED JANUARY 5, 2010**

9:00 AM HEARING IN RE: STATUS OF MEDIATION

Need appearances to report status

Notes:

Court Trial on calendar 02/18/26 and 02/20/26 at 1:30pm